

Tentative Rulings for July 2, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302280	S. VS RIVERSIDE UNIFIED SCHOOL DISTRICT	MOTION TO TAX COSTS

Tentative Ruling: Grant the motion as to the \$295 in private investigator fees. Deny the remainder of the motion.

A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP §1032(b).) A prevailing party is “the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor the defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (*Id.* at (a)(4).) Neither party disputes that Defendants are the prevailing parties and entitled to some costs.

CCP §1033.5 provides a list of costs that are allowable and those that are not. CCP §1033.5(c)(4) provides that any items not identified as allowable and not specifically identified as prohibited, may be permitted at the Court’s discretion. “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP §1033.5(c)(2).)

In ruling on a motion to tax costs, the court must first determine “whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking said expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

Rough Draft Costs: Plaintiff has withdrawn his motion as to these costs.

Nonappearance and Cancellation Charges: Plaintiff seeks to tax \$2,188.90 in costs incurred in taking the deposition of Beverly Thomas-Marsh - \$881.95 for a certificate of non-appearance in September 2024, \$881.95 for a certificate of non-appearance in October 2024, and \$425 for cancellation of video reporting services in October 2024. CCP § 1033.5(a)(3) allows for the costs in taking, video recording, and transcribing necessary depositions. Costs not specifically precluded can be recovered if they are reasonably necessary for litigation.

Plaintiff argues that the costs incurred in taking a second certificate of non-appearance and the cancellation of video reporting services fees were not reasonable because Defendants knew that Ms. Thomas-Marsh did not want to appear for her deposition. As such, he asserts Defendants should not have incurred said costs until a court order compelling Thomas-Marsh to deposition was obtained. Plaintiff does not articulate why the certificate of non-appearance for September 2024 was not reasonable.

In opposition, Defendants provide evidence that they obtained the second certificate of non-appearance fee in October 2024 and cancellation fees, after obtaining a court order compelling Thomas-Marsh to appear for her deposition and after obtaining confirmation from Thomas-Marsh that she would attend her October 2024 deposition. (Declaration of Nathaniel B. Rosilez, ¶¶ 6-7 and 10-16.) Based on this, Defendants did what Plaintiff contends they should have done, undermining Plaintiff's argument that the fees are unreasonable. In reply, Plaintiff continues to argue that taking the certificate of non-appearance in October was not necessary. This appears to be based on Thomas-Marsh's prior untrustworthy conduct.

It also appears that obtaining the video cancellation fees were reasonable. Based on the evidence in opposition, Thomas-Marsh confirmed she would be attending her deposition 9 days before the deposition. This was after Defendants obtained a court order compelling said deposition. Defendants' conduct in proceeding with a video tapped deposition appears appropriate based on these facts. As such, the costs for the cancellation appear reasonable. The motion is denied as to these costs.

Service of Process Fees: Plaintiff asserts that \$391.80 in fees for attempting to serve Jeffrey Boyd should be taxed because Boyd was successful in serving him three days later, for which Defendant seeks \$239.35 in fees for said service. Plaintiff argues the fees for the unsuccessful service are not proper. Under CCP § 1033.5(a)(4), fees for the service of process by a registered process server is allowed. These fees were incurred by a registered process server. (Declaration of Nathaniel B. Rosilez, ¶¶ 8 and 9.) Plaintiff does not argue that this individual's testimony was not necessary. There is no evidence that indicates that it was unreasonable that service took two attempts. The motion is denied as to this request.

Plaintiff also seeks to tax \$295 in private investigator fees to locate Thomas-Marsh for service of her deposition subpoena. This argument has merit. Investigation fees, except when authorized by law, are not allowed. (CCP § 1033.5(b)(2).) No statute is identified by Defendants. The motion is granted as to this request.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304620	BALOGH VS CROWN SURGERY MEDICAL GROUP, INC.	MOTION TO ENFORCE SETTLEMENT & ENTER JUDGMENT, SUPPORTING DECLARATION, PROPOSED ORDER

Tentative Ruling: Grant. Proper order needed for signature. Costs to be determined by declaration.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404367	KNIGHT VS FCA US, LLC	MOTION TO TAX COSTS

Tentative Ruling: Denied.

The initial verification on the memorandum of costs is sufficient to establish the reasonable necessity of the costs being claimed. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Plaintiff offers no evidence in support of the contention that Defendant’s costs are unreasonable, other than to point out that Defendant has provided no invoices receipts, or documentation of any kind, or sworn attestation to support the charges.

Code of Civil Procedure section 1032 establishes the general rule for awarding costs in civil action that “[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032(b).) Here, it is undisputed that Defendant is the prevailing party for purposes of awarding costs under section 1032. Courts have recognized that this section does not come in conflict with the cost-shifting statute under Civil Code section 1794 of the Song-Beverly Act, which entitles the prevailing buyer the right to recover “costs and expenses, including attorney’s fees” while remaining silent regarding the right of prevailing defendant to recover its costs and fees. (*Duale v. Mercedes-Benz USA, LLC* (2007) 148 Cal.App.4th 718, 727.) Therefore, in a buyer’s action brought under the Song-Beverly Act, a prevailing defendant manufacturer is still entitled to recover its costs pursuant to Code of Civil Procedure section 1032.

Here, Plaintiff has brought a timely motion to strike or tax costs. A party contesting the cost memorandum must serve and file the notice of motion to strike or tax costs “15 days after service of the cost memorandum.” (Cal. Rules of Court, rule 3.1700(b)(1).) If the cost memorandum was served electronically, as is the case here, the 15-day period is extended by two court days. (*Ibid.*; Code Civ. Proc., §1010.6(a)(4).) Here, the Memorandum of Costs was served on February 27, 2026, via electronic service. Hence, Plaintiff has timely brought a motion to strike or, alternatively, to tax the Memorandum of Costs on March 16, 2026.

Nevertheless, the motion must be denied since Plaintiff makes no valid challenge to Defendant’s Memorandum of Costs or individual cost items. The initial verification on the memorandum of costs is sufficient to establish the reasonable necessity of the costs being claimed. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Unless objection is made as to the entire memorandum, the motion to tax cost must refer to each item objected to by the same number and order as the corresponding cost item claimed on the memorandum and state why the item is objectionable. (Cal. Rules of Court, rule 3.1700(b)(2).) Here, as Defendant points out, Plaintiff merely argues that the motion must be granted

because Defendant provides no invoices, receipts, or documentation of any kind, or sworn attestation to support these charges. Merely alleging in the motion that the costs are neither necessary nor reasonable without a supporting declaration does not meet the burden of showing that the costs are unnecessary. (*See County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) Only after the items are properly objected to, does the burden of proof shift to the party claiming them as costs. (*Ladas v. California State Auto. Assn.*, *supra*, 19 Cal.App.4th at 774.) Plaintiff has not met his initial burden to shift the burden onto Defendant.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2500073	MONARCH RAW PET FOOD VS DAVIS	MOTION FOR TERMINATING SANCTIONS

Tentative Ruling: Grant motion for terminating sanctions. Answer of Cross-Defendant Benjamin Keith Davis is stricken. Additional Sanctions \$2400 awarded to Proponent of motion, payable within 10 days. No opposition.